NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-18/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

SARANSH BUILDCON PRIVATE LIMITED

... Applicant No.1/Transferor Company

AND

JAINSONS RUGS INTERNATIONAL PRIVATE LIMITED

...Applicant No.2/ Transferor Company

AND

MYS INFRASTRUCTURE LIMITED

...Applicant No.3/ Transferor Company

AND

YMS FOODS LIMITED

...Applicant No.4/ Transferor Company

AND

SERVITUDE HR SOLUTIONS PRIVATE LIMITED

...Applicant No.5/ Transferor Company

WITH

LAWMAX MERCHANT SERVICES PRIVATE LIMITED

..Applicant No. 6/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 30.07.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L.N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Vijay Kumar Gupta, CA

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)18/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation', which shall take effect from the Appointed Date of 01.04.2020.

2. That it is pertinent to mention here that the Applicant Companies vide C.A.-123/ND/2021 have filed additional documents on record.

3. That M/s Saransh Buildcon Private Limited (hereinafter referred as the **"Transferor Company No.1")** having CIN no. U93000DL2010PTC204970 is a Private Limited company incorporated under the Companies Act, 2013 on 29.06.2010. The registered office of the Transferor Company No.1 is situated at A-208, Mangal Apartment Vasundhara Enclave, New Delhi-110096.

4. That M/s Jainsons Rugs International Private Limited (hereinafter referred as the **"Transferor Company No. 2"**) having CIN no. U74110 DL2004PTC355385 is a Private Limited company incorporated under the Erstwhile Companies Act, 1956 on 28.04.2004. The registered office of the Transferor Company No.2 is situated at A-5, Pota Cabin, Third Floor, Defence Colony, New Delhi-110024.

5. That M/s MYS Infrastructure Limited (hereinafter referred as the **"Transferor Company No. 3"**) having CIN no. U70109DL2017PLC315509 is a Public Limited company incorporated under the Companies Act, 2013 on 03.04.2017. The registered office of the Transferor Company No.3 is situated at 314, Kirti Shikhar Building, Janakpuri District Centre, Janakpuri, New Delhi-110058.

6. That M/s YMS Foods Limited (hereinafter referred as the **"Transferor Company No. 4"**) having CIN no. U15400DL2017PLC315418 is a Public Limited company incorporated under the Companies Act, 2013 on 31.03.2017. The registered office of the Transferor Company No.4 is situated at 314, Kirti Shikhar Building, Janakpuri District Centre, Janakpuri, New Delhi-110058.

7. That M/s Servitude HR Solutions Private Limited (hereinafter referred as the **"Transferor Company No. 5"**) having CIN no. U74140DL2012 PTC246418 is a Private Limited company incorporated under the Erstwhile

Companies Act, 1956 on 18.12.2012. The registered office of the Transferor Company No.5 is situated at A-5, Pota Cabin, Third Floor, Defence Colony, New Delhi-110024.

8. That M/s Lawmax Merchant Services Private Limited (hereinafter referred as the **"Transferee Company"**) having CIN no. U74999DL2013 PTC249225 is a company incorporated under Erstwhile Companies Act, 1956 on 07.03.2013. The registered office of the Transferee Company is situated at A-5, Pota Cabin, Third Floor, Defence Colony, New Delhi-110024.

9. That the present Petition has been jointly filed by all the Transferor and Transferee Companies. All the 'Transferor' and 'Transferee' Companies together are called **'Applicant Companies'** hereinafter. That the Registered offices of all the Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

10. It is seen from the record that the Board of Directors of all the Applicant Companies vide separate meetings held on 08.10.2020 have approved the proposed 'Scheme of Amalgamation'.

11. It is stated by the Applicant Companies that the following objectives are sought to be achieved by way of Amalgamation:

> *"1. The transferor Companies and Transferee Company are under same group of management, so in order to consolidate the business at one place and effectively manage the transferor companies and transferee company as a single entity, which*

will provide several benefits including streamlined group structure by reducing the number of entities, reducing the multiplicity of legal and regulatory compliances, rationalizing cost.

2. *The proposed amalgamation would enable pooling of physical, financial and human resource of these Companies for the most beneficial utilization of these factors in the combined entity.*

3. *The proposed Scheme would result in optimum utilization of the manpower of the concerned companies. It will open better avenues for the employees of the concerned companies. The employees will have a better choice of skill up gradation, development and career growth.*

4. *The said scheme of Amalgamation will contribute in fulfilling and furthering the objects of the Transferor and the Transferee Companies. It will strengthen, consolidate and facilitate further expansion and growth of their businesses. The resulting amalgamated company will be able to participate more vigorously and profitably in the competitive market scenario.*

5. *The proposed amalgamation would enhance the shareholders' value of the Transferor and Transferee Companies."*

12. That all the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under Companies Act 2013.

13. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

14. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheets as on 31.03.2020.

15. That the position regarding the Applicant Company-wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised below:

Company	No. of Share holders	Percentage of Shareholders given Consent (in value)	No. of Secured Creditors	Percentage of Unsecured Creditors given Consent (in value)	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
Saransh Buildcon Private Limited	3	100%	Nil	NA	1	100%
Jainsons Rugs International Private Limited	8	100%	Nil	NA	Nil	NA
MYS Infrastructure Limited	8	99.99%	Nil	NA	Nil	NA
YMS Foods Limited	8	99.99%	Nil	NA	Nil	NA
Servitude HR Solutions Private Limited	2	100%	Nil	NA	Nil	NA
Lawmax Merchant Services Private Limited	2	100%	Nil	NA	1	100%

16. That all the shareholders of all the Applicant Companies except Applicant Companies no. 3 & 4 have given 'no objection' to the Scheme on respective affidavits. In respect of Applicant Company 3 & 4, shareholders holding almost 99.99% shares in value have given 'no objection' on affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of all the Applicant Companies is dispensed with.

17. That the '100% in value' of unsecured creditors of the Applicant Company No. 1 and 6 have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of the Applicant Companies no. 1 and 6 is dispensed with. Further, there are no unsecured creditors in all the other Applicant Companies. Therefore, the requirement of convening of their respective meetings does not arise.

18. Since there are no Secured Creditors in any of the Applicants Companies, the requirement of convening their meeting does not arise.

19. **The Application is Allowed in the aforesaid terms.**

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(L. N. Gupta)
Member (T)

-Sd-

(Abni Ranjan Kumar Sinha)
Member (J)